

PAIA Manual

What we hold, and how to ask for it.

Prepared in terms of section 51 of the Promotion of Access to Information Act 2 of 2000, and read together with the Protection of Personal Information Act 4 of 2013.

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CONTENTS

What this manual covers

- 01 Purpose of this manual
- 02 The body and its contact details
- 03 Information Officer
- 04 The section 10 guide on how to use PAIA
- 05 Records available without a request
- 06 Records available under other legislation
- 07 Categories of records we hold
- 08 How to request access to a record
- 09 Fees
- 10 Decision and timeframes
- 11 Grounds on which access may be refused
- 12 Remedies if a request is refused
- 13 Personal information we process (POPIA)
- 14 Your rights as a data subject
- 15 Complaints to the Information Regulator
- 16 Availability and updating of this manual
- A Annexure A — request for access form

If you received a call from us and want to check it was genuine, start with section 14.

We never ask for a payment, a card PIN, a banking password or a one-time code.

01 Purpose of this manual

The Promotion of Access to Information Act 2 of 2000 ("PAIA") gives effect to the constitutional right of access to information held by another person where that information is required to exercise or protect a right. Section 51 requires every private body to compile a manual describing the records it holds and how access to them may be requested.

This manual sets out what Atang Tracing Services holds, who to approach, what the process is, and what it costs. It also explains how we handle personal information under the Protection of Personal Information Act 4 of 2013 ("POPIA") and what rights you have over your own information.

02 The body and its contact details

NAME OF BODY	Atang Tracing Services (Pty) Ltd
NATURE OF BUSINESS	Tracing and verification of members, beneficiaries and claimants so that unclaimed benefits can be paid
REGISTERED OFFICE	No. 23 Section U Ext, Mamelodi West, 0101, Pretoria, South Africa
POSTAL ADDRESS	As above
TELEPHONE	071 823 0454
EMAIL	info@atangts.co.za
WEBSITE	www.atangts.co.za

03 Information Officer

All PAIA requests, POPIA requests and privacy queries are handled by the Information Officer. A director answers in person — requests are not routed to a call centre.

INFORMATION OFFICER

Kamogelo Moisapula

Managing Director • info@atangts.co.za • 071 823 0454

No. 23 Section U Ext, Mamelodi West, 0101, Pretoria

04 The section 10 guide on how to use PAIA

The Information Regulator has compiled a guide, in terms of section 10 of PAIA, explaining how to exercise the rights the Act gives you. It is available in each official language and is free to obtain.

THE INFORMATION REGULATOR (SOUTH AFRICA)

JD House, 27 Stiemens Street, Braamfontein, Johannesburg, 2001

P.O. Box 31533, Braamfontein, Johannesburg, 2017

Telephone: 010 023 5200 • Website: inforegulator.org.za

On request, we will assist you in obtaining a copy of the guide, or direct you to it.

05 Records available without a request

We have not published a notice under section 52(1) of PAIA listing categories of records that are automatically available without a request. The following are, however, freely available on our website or on request, at no charge:

- This PAIA manual.
- Our privacy notice and POPIA policy.
- Our service descriptions and published contact details.
- Guidance on how to verify that a call from us is genuine.

06 Records available under other legislation

Certain records are kept, and may be accessible, in terms of other laws. These include the Companies Act 71 of 2008, the Income Tax Act 58 of 1962, the Tax Administration Act 28 of 2011, the Basic Conditions of Employment Act 75 of 1997, the Labour Relations Act 66 of 1995, the Unemployment Insurance Act 63 of 2001, the Compensation for Occupational Injuries and Diseases Act 130 of 1993, the Value-Added Tax Act 89 of 1991 and POPIA. Access under those Acts is governed by their own provisions, not by this manual.

07 Categories of records we hold

Records are held by subject, as set out below. Listing a category here does not mean access will be granted — every request is decided on the grounds in section 11 of this manual, and case records are confidential to the instructing client and the individuals concerned.

SUBJECT	CATEGORIES OF RECORDS
Corporate	Founding documents, directors' details, statutory registers, resolutions, insurance, licences
Client engagements	Service agreements, data processing agreements, scoping documents, SLAs, correspondence
Case records	Tracing instructions, case files, verification evidence, call logs, field verification notes, outcome reports
Client reporting	Progress reports, portfolio summaries, final reports, evidence appendices
Financial	Invoices, statements, banking records, annual financial statements, tax returns
Employees	Contracts, personnel files, payroll, training records, signed policy acknowledgements
Governance & compliance	POPIA policy, information security policy, standard operating procedures, incident register, audit records
Suppliers	Vendor agreements, operator agreements, due diligence records
Information requests	PAIA and POPIA requests received, decisions taken, and the reasons for them

Case records contain personal information about third parties and are held on behalf of the instructing client. They are not disclosed to anyone other than that client, the individual the record concerns, or a person acting with proper authority.

08 How to request access to a record

- 01 Complete the request form in Annexure A, or the prescribed form published under the PAIA Regulations. Use one form per request.
- 02 Identify the record clearly enough for us to find it, and state the form of access you want — a copy, an inspection, or a transcript.
- 03 State which right you are seeking to exercise or protect, and explain how the record will help you do so. A request that does not do this cannot be granted.
- 04 Give your full name, an address and a contact number, and say how you would like our decision delivered.
- 05 If you are acting for someone else, attach written proof of your authority.
- 06 If you have a disability that prevents you completing the form, tell us and we will record the request for you.
- 07 Send the form to the Information Officer by email, or deliver it to the registered office. We acknowledge every request in writing.

Requests for your own personal information

If you simply want to know what we hold about you, or want it corrected or deleted, use the POPIA route in section 14 instead. It is quicker and there is no request fee.

09 Fees

PAIA allows a private body to charge the fees prescribed by regulation. We charge no more than the prescribed amounts, and we will always tell you the amount in writing before you pay.

FEE	WHEN IT APPLIES
Request fee	Payable on submission, unless you are requesting your own personal information
Access fee	Reproduction, search and preparation time, and postage where applicable
Deposit	Where search and preparation is likely to exceed six hours
No fee	A data subject requesting their own personal information under POPIA, other than reproduction costs

Current amounts are those published in the PAIA Regulations in the Government Gazette. We quote the applicable amount when we acknowledge your request.

10 Decision and timeframes

We will decide a request within 30 days of receiving it and notify you in writing. That period may be extended by up to a further 30 days where the request covers a large number of records, or where records must be retrieved from off-site storage — we will tell you in writing if it is, and why.

Where a record contains information about a third party, we must notify that party and give them an opportunity to make representations before we decide. This may extend the timeline, and we will keep you informed.

If we grant access, we will state the access fee payable, the form access will take, and your right to ask a court to review the fee. If we refuse, we will give adequate reasons and the provisions relied on.

11 Grounds on which access may be refused

PAIA obliges or permits us to refuse access in the circumstances set out in Chapter 4 of Part 3 of the Act. In summary:

- Unreasonable disclosure of personal information about a third party, including a deceased person (section 63).
- Commercial information of a third party or of Atang — trade secrets, financial or technical information whose disclosure would cause harm (sections 64 and 68).
- Information supplied in confidence, where disclosure would breach a duty of confidence (section 65).
- Information whose disclosure could endanger a person's life or physical safety, or prejudice the security of property (section 66).
- Privileged records, including legally privileged material (section 67).
- Research information, where disclosure would expose the researcher or the subject matter to serious disadvantage (section 69).
- Requests that are manifestly frivolous or vexatious, or that would involve a substantial and unreasonable diversion of resources (section 45).

Access must nevertheless be granted where the public interest override in section 70 applies. Where only part of a record is protected, we grant access to the remainder.

12 Remedies if a request is refused

There is no internal appeal against a decision of a private body. If you are dissatisfied with our decision, or we fail to decide within the applicable period, you may lodge a complaint with the Information Regulator, or apply to a court with jurisdiction for appropriate relief, within 180 days of being notified.

13 Personal information we process (POPIA)

Our work is the tracing and verification of people so that money owed to them can be paid. That necessarily involves processing personal information, usually without having been able to ask the person first — because finding them is the point of the exercise.

PURPOSE	To locate and verify members, beneficiaries, dependants, claimants and former employees on the instruction of the organisation holding the benefit, so that a payment or a claim can be concluded
LAWFUL BASIS	Processing is necessary for the legitimate interests of the data subject, our client and ourselves, and to pursue the conclusion of an obligation owed to the data subject — sections 11(1)(d) and 11(1)(f) of POPIA. Consent is obtained where it is the applicable basis
DATA SUBJECTS	Fund members, beneficiaries and dependants; claimants; estates; former employees; client representatives; our own employees and suppliers
CATEGORIES	Names and identity numbers; contact details and addresses; date of birth; life status and date of death; employment history; banking details for verification; relationship and dependency information; correspondence and call records

Banking details are collected only to confirm that a payment will reach the right person. We never collect a card PIN, a banking password or a one-time code, and no employee may ask for one.

13 Personal information we process — continued

SOURCES	The instructing client's own records; the data subject; lawfully accessible public and commercial data sources; field verification in the community
RECIPIENTS	The instructing client; operators under written agreement; professional advisers; regulators, courts or law enforcement where the law requires it
CROSS-BORDER	We do not routinely transfer personal information outside South Africa. Where a service provider processes data abroad, section 72 of POPIA is complied with
RETENTION	Case data is kept only as long as the engagement and its reporting obligations require, and for any period the law prescribes, then returned to the client or destroyed
SECURITY	Access on a need-to-know basis, encrypted transfer, multi-factor authentication, logged actions, locked physical storage, and written agreements with every operator

Our full approach is set out in the POPIA Policy and the Information Security Policy, both available from the Information Officer.

14 Your rights as a data subject

Be told what we hold

Ask whether we hold your personal information, and to be given a record or description of it.

Correct or delete

Ask us to correct or delete information that is inaccurate, irrelevant, excessive or out of date.

Object to processing

Object, on reasonable grounds, to our processing of your information under section 11(3).

Withdraw consent

Where processing rests on your consent, withdraw it at any time.

Complain

Submit a complaint to the Information Regulator about how we have handled your information.

Civil relief

Institute civil proceedings for interference with the protection of your personal information.

Requests to access, correct, delete or object are made on the prescribed POPIA form and sent to the Information Officer. We acknowledge in writing and respond within a reasonable period. Reproduction costs may apply to an access request; there is no charge for a correction or an objection.

15 Complaints to the Information Regulator

The Information Regulator (South Africa)
JD House, 27 Stiemens Street, Braamfontein, Johannesburg, 2001
Telephone: 010 023 5200
General enquiries: enquiries@inforegulator.org.za
PAIA and POPIA complaints: complaints.IR@inforegulator.org.za

16 Availability and updating of this manual

This manual is available free of charge on our website, by email from the Information Officer, and as a signed hard copy at the registered office during business hours. It is reviewed annually, and updated whenever our records, contact details or processing activities change materially.

ANNEXURE A

Request for access to a record

Complete in block letters and send to the Information Officer at info@atangts.co.za. One record category per form.

A · PARTICULARS OF THE REQUESTER

FULL NAME

IDENTITY NUMBER

EMAIL ADDRESS

CONTACT NUMBER

POSTAL ADDRESS

IF ACTING FOR ANOTHER PERSON — THEIR NAME AND YOUR CAPACITY (ATTACH PROOF OF AUTHORITY)

B · THE RECORD REQUESTED

DESCRIPTION OF THE RECORD, AND THE PERIOD IT COVERS

☐ Copy of the record ☐ Inspection of the record ☐ Transcript

C · THE RIGHT YOU ARE EXERCISING OR PROTECTING

THE RIGHT CONCERNED, AND HOW THE RECORD WILL HELP YOU EXERCISE OR PROTECT IT

D · SIGNATURE

SIGNED AT

DATE

SIGNATURE OF REQUESTER